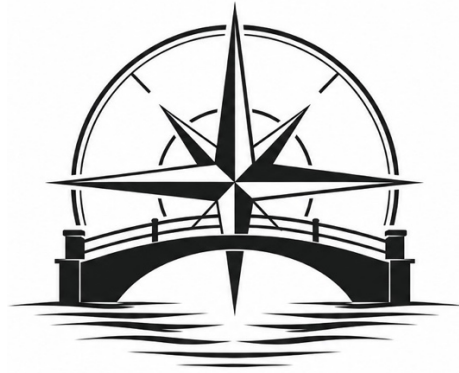




HARRINGTON MEDIATION

Understanding Precedes Resolution

Understanding Mediation

A Guide to the Mediation Process

Published by

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What is Mediation

Mediation is a voluntary, confidential process in which individuals involved in a conflict meet with a neutral third party—the mediator—to discuss their concerns, improve communication, and explore possible resolutions.

Unlike a judge or arbitrator, a mediator does not decide who is right or wrong, impose solutions, or provide legal advice. Instead, the mediator guides a structured conversation that allows participants to better understand one another, identify the issues that matter most, and determine whether mutually acceptable agreements can be reached.

Every conflict is unique because every relationship is unique. For that reason, mediation is designed to remain flexible, allowing participants to discuss the matters most important to them while maintaining control over the outcome.

At Harrington Mediation, we believe that meaningful progress often begins not with agreement, but with understanding.

Mediation Is...

- A voluntary process based upon participant choice.
- A confidential conversation, subject to limited legal exceptions.
- Guided by a neutral and impartial mediator.
- Focused on improving communication and understanding.
- A place where participants make their own decisions.
- Flexible and adaptable to the needs of those involved.
- An opportunity to explore solutions that may not be available through litigation.

Mediation Is Not...

- A court proceeding.
 - Therapy or counseling.
 - Legal representation or legal advice.
 - A process where the mediator decides who is right or wrong.
 - A guarantee that an agreement will be reached.
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Our Philosophy

Understanding Precedes Resolution.

Whether mediation results in a written agreement, improved communication, greater clarity, or simply a better understanding of one another, participants remain at the center of every decision throughout the process.

Why Choose Mediation?

People choose mediation for many different reasons. Some hope to resolve a dispute. Others simply want an opportunity to have a productive conversation that has become difficult to achieve on their own.

Unlike many formal dispute resolution processes, mediation encourages participants to remain actively involved in shaping both the conversation and any potential outcomes. Rather than placing decisions in the hands of a judge, arbitrator, or other third party, mediation allows participants to explore solutions that reflect their own circumstances, priorities, and goals.

Although mediation is not appropriate for every situation, many individuals find that it provides a respectful and constructive environment for addressing conflict while preserving dignity, communication, and self-determination.

Benefits of Mediation

- Encourages open and respectful communication.
 - Allows participants to remain in control of decisions.
 - Creates opportunities for mutual understanding.
 - Can preserve important personal or professional relationships.
 - Offers flexible and creative problem-solving.
 - Provides a private setting for difficult conversations.
 - May reduce the emotional, financial, and time-related costs associated with prolonged conflict.
-

When Is Mediation Helpful?

Mediation may be appropriate whenever people are willing to participate voluntarily and engage in good-faith conversation. While every conflict is different, mediation is commonly used in situations involving ongoing relationships or issues where communication has broken down.

Examples include:

- Family disagreements
 - Parenting and co-parenting matters
 - Divorce and separation issues
 - Workplace conflicts
 - Neighbor disputes
 - Business disagreements
 - Community conflicts
 - Organizational disputes
-

Is Mediation Right for Every Situation?

No.

Some situations require additional assessment before mediation is appropriate. Concerns involving safety, coercion, threats, or other factors may require accommodations, referrals, or alternative services.

For this reason, Harrington Mediation conducts an intake and conflict screening process before mediation begins to help determine whether mediation is appropriate for the circumstances presented.

Choosing mediation is not simply choosing a method of resolving conflict—it is choosing an opportunity to better understand the people and issues involved before deciding how to move forward.

When Is Mediation Helpful?

Mediation is appropriate whenever people are willing to participate voluntarily and are open to having a constructive conversation. While every conflict is different, mediation is frequently used when communication has become difficult, relationships have become strained, or important decisions need to be made collaboratively.

Many people seek mediation before conflict becomes a legal dispute. Others turn to mediation after months—or even years—of unsuccessful attempts to resolve a disagreement on their own.

Although mediation cannot guarantee an agreement, it often provides an opportunity for participants to better understand one another, clarify important issues, and identify practical paths forward.

Mediation may be appropriate for:

- Family disagreements
- Parenting and co-parenting matters
- Divorce and separation discussions
- Workplace conflicts
- Neighbor disputes
- Business disagreements
- Landlord–tenant communication
- Community conflicts
- Organizational or volunteer disputes
- Situations where communication has broken down

When Might Mediation Not Be Appropriate?

Although mediation is a valuable process, it is not appropriate for every situation. The mediator conducts screening before mediation begins to determine whether the process appears suitable and whether any accommodations may be necessary.

Mediation may not be appropriate when:

- A participant cannot participate voluntarily.
- A participant cannot make independent decisions.
- There is an immediate safety concern that cannot be reasonably addressed.
- One or more participants are unable to communicate effectively, even with reasonable accommodations.
- Another legal or professional process is more appropriate.

In some situations, mediation may still proceed with accommodations such as separate sessions (caucus), virtual participation, attorney participation, staggered arrival and departure times, or additional support measures.

Our Commitment

Every situation is carefully considered on its own merits. Harrington Mediation is committed to providing a process that is ethical, participant-centered, and focused on safety, respect, and informed self-determination.

The Mediation Process

Although every case is unique, most mediation sessions follow a similar structure. The purpose of the process is not to determine who is right or wrong, but to create an organized conversation that helps participants better understand one another and explore possible solutions.

Step 1 — Introduction

The mediator welcomes everyone, explains the mediation process, reviews confidentiality, and answers any questions before the discussion begins.

Step 2 — Sharing Perspectives

Each participant has an uninterrupted opportunity to describe the situation from their perspective and identify the issues they believe are most important.

Step 3 — Exploring the Issues

The mediator facilitates a respectful conversation, helping participants clarify concerns, identify interests, and better understand one another's viewpoints.

Working Toward Resolution

Step 4 — Exploring Options

Participants work together to identify possible solutions. The mediator does not recommend outcomes but helps facilitate productive discussion and evaluate available options.

Step 5 — Agreement (When Appropriate)

If participants reach an agreement, its terms may be documented according to the nature of the mediation. Participants remain free to seek independent legal advice before signing any agreement.

Step 6 — Closing the Session

The mediator summarizes the discussion, reviews any agreements or next steps, and answers any remaining questions.

Throughout the Process

Participants remain in control of:

- The decisions they make.
- The options they consider.
- Whether to continue the mediation.
- Whether to reach an agreement.

The mediator remains responsible for maintaining a respectful, balanced, and productive process while supporting meaningful communication.

Preparing for Your Session

You do not need to prepare a formal presentation or have all the answers before mediation begins. The most valuable preparation is simply taking a few moments to reflect on the issues you would like to discuss and what you hope to accomplish.

Before your session, consider:

- What are the most important issues you would like to address?
- What outcome would represent meaningful progress?
- Are there documents or information that may be helpful to bring?
- What concerns or questions would you like to discuss with the mediator?

Coming to mediation with an open mind and a willingness to listen can often be just as important as speaking.

What to Bring to Your Mediation Session

Bring any items that may help you participate effectively in the mediation process, including:

- Any documents relevant to the issues being discussed (if applicable)
- A notepad or notebook for taking notes
- A pen or pencil
- Any written questions or topics you wish to discuss
- Water or another non-alcoholic beverage
- A light snack, if needed, especially for longer sessions
- Any materials requested by your mediator before the session

Please avoid bringing audio or video recording devices unless all participants have agreed in advance and recording is permitted.

Making the Most of Mediation

Participants often have the most productive experience when they:

- Listen with the intention of understanding.
- Speak honestly and respectfully.
- Focus on interests rather than blame.
- Remain open to exploring different options.
- Ask questions when something is unclear.
- Take breaks if emotions become overwhelming.

Remember that meaningful progress does not always require immediate agreement. Sometimes mediation helps participants better understand one another, clarify important issues, or identify productive next steps.

Before You Arrive

- ✓ Confirm your appointment time.
 - ✓ Arrive a few minutes early or join virtual sessions promptly.
 - ✓ Bring any documents you believe may assist the discussion.
 - ✓ Contact Harrington Mediation in advance if you require accommodations or have questions before your session.
-

The goal of mediation is not to win an argument—it is to create an opportunity for meaningful conversation, thoughtful decision-making, and lasting understanding.

Frequently Asked Questions

How long does mediation usually last?

Most mediation sessions are scheduled for approximately two to three hours. Some matters are resolved in a single session, while others may require additional sessions depending on the complexity of the issues involved.

Do I need an attorney?

No. Participants are welcome to consult with or have an attorney present if appropriate, but mediation does not require legal representation unless required by law or agreed upon by the participants.

Will the mediator decide who is right?

No. The mediator remains neutral throughout the process and does not determine who is right or wrong. Participants remain responsible for making their own decisions.

Is mediation confidential?

Yes. Mediation is intended to be confidential, subject to limited legal exceptions that are explained before mediation begins.

What if we do not reach an agreement?

Not every mediation results in a written agreement. Even when an agreement is not reached, participants often leave with a clearer understanding of the issues, improved communication, or a better foundation for future discussions.

Can I stop mediation?

Yes. Mediation is voluntary. Participants may request a break or choose to end their participation at any time.

Can mediation be conducted virtually?

Yes. When appropriate, mediation sessions may be conducted virtually using a secure online platform.

Who decides the outcome?

The participants.

The mediator guides the conversation, but all decisions remain with the participants.

Still Have Questions?

If you have questions before your mediation session, please contact Harrington Mediation. We are committed to ensuring that every participant understands the process and feels prepared before mediation begins.

About Harrington Mediation

Harrington Mediation was founded on the belief that lasting resolution begins with meaningful understanding. Rather than focusing solely on settling disputes, our practice seeks to create an environment where individuals can communicate more effectively, better understand one another, and make informed decisions that reflect their own values, interests, and goals.

Our approach is grounded in the principles of participant self-determination, neutrality, respect, and ethical professional practice. Every mediation is conducted with the understanding that the participants—not the mediator—are the experts on their own lives and remain responsible for the decisions they make.

Our Philosophy

Understanding Precedes Resolution.

We believe that understanding is not merely a step toward resolving conflict—it is often the foundation upon which meaningful and lasting solutions are built.

Our Services

Harrington Mediation currently provides professional mediation services in a variety of conflict settings, including:

- Family Mediation
- Parenting & Co-Parenting Mediation
- Workplace Mediation
- Community Mediation
- Neighbor Disputes
- Organizational Conflict
- General Civil Mediation
- Conflict Coaching (One-on-One Conflict Support)

As our practice continues to grow, additional conflict resolution and educational services may become available.

Beyond Mediation

Conflict Coaching

In some situations, mediation may not be the appropriate first step. Harrington Mediation also offers **Conflict Coaching**, a confidential one-on-one service designed to help individuals better understand conflict, strengthen communication skills, prepare for difficult conversations, and think intentionally about available options.

Unlike mediation, Conflict Coaching involves only one participant and focuses on personal reflection, communication, and self-determination.

Professional Boundaries

Conflict Coaching is **not**:

- Legal representation or legal advice.
- Financial advice.
- Psychological counseling or therapy.
- Crisis intervention.
- Advocacy or representation for either party.
- A service in which the coach decides what you should do.
- A process where the coach takes sides or determines who is right or wrong.

To learn more about Conflict Coaching, please visit our website or request a separate Conflict Coaching information guide.

Connect With Harrington Mediation

We welcome the opportunity to answer questions about mediation, discuss whether mediation may be appropriate for your situation, or help you schedule a consultation.

Website

robertharringtonjr.com

Email

harringtonmediation@yahoo.com

Phone

443-680-5576

Scan For Homepage



Additional Resources

Continue your learning through the educational resources available from Harrington Mediation and Harrington EduTainment.

Educational Resources

- Understanding Conflict Coaching – Booklet
 - Understanding Mediation – Educational Video Series
 - HarringtonEduTainment YouTube Channel
 - Notary Services
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Join Us

Whether you are considering mediation, preparing for conflict coaching, or simply seeking to better understand conflict, we invite you to explore additional educational resources designed to encourage thoughtful communication, reflection, and understanding.



HARRINGTON MEDIATION

Understanding Precedes Resolution

Thank you for taking the time to learn about mediation.

Meaningful resolution often begins with meaningful understanding.

Contact

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